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# INTRA-COMPANY TRANSFER VISA



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## INTRA-COMPANY TRANSFER VISA

**This route is now closed to new applicants. If you are a senior manager or specialist employee wishing to undertake an intra-company transfer then you should apply for a Global Business Mobility – Senior or Specialist Worker Visa (<https://immigrationbarrister.co.uk/personal-immigration/business-mobility-visas/global-business-mobility-visa-senior-or-specialist-worker/>) instead.**

The Intra-Company Transfer Visa is for employees of multinational employers who need to be transferred to a UK branch of their employer to do a skilled role in the UK.

You will need to have worked for your employer overseas for at least 12 months, unless you will earn £73,900 or more in the UK.

## Requirements for an Intra-Company Transfer Visa

In order to qualify for an Intra-Company Transfer Visa, you will need to satisfy UK Visas and Immigration that:

- You are aged 18 or over;
- You are currently employed by an organisation that has been approved by the Home Office as a sponsor;
- You have worked for your sponsor, or a business linked to your sponsor by ownership, outside the UK, for at least 12 months, unless you will earn £73,900 or more in the UK;
- You have a valid Certificate of Sponsorship issued by your sponsor for the job you are planning to do;
- The job you are planning to do is genuine;

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- The job you are planning to do is at an appropriate skill level;
- You will be paid at least £41,500 or the 'going rate' for your job, <https://www.bhogle.co.uk> immigration barristers
- (2) Your sponsor has paid any required Immigration Skills Charge; [g=richmond+chambers+in](https://www.richmondchambers.in)
- You have enough money to support yourself without relying on public funds;
- You have provided a valid TB certificate, if required.

The exact requirements you will need to satisfy will vary depending on your circumstances. You may want to speak to an immigration lawyer for expert advice.

**To discuss your Intra-Company Transfer Visa application with one of our immigration barristers, contact our business immigration team on 0203 617 9173 or complete our enquiry form below.**

## Intra-Company Transfer Visa Duration of Employment Requirement

If you are applying for an Intra-Company Transfer Visa and you are earning less than £73,900 per year then you must be currently working for your sponsor, or a business linked to your sponsor by ownership, outside the UK, for a period of at least 12 months.

The 12 months' work outside the UK can have been accumulated over a historic period if you were continuously working for the sponsor group, in the UK or overseas, throughout the 12 months prior to the date of application and any breaks have only been for statutory maternity, paternity or parental leave, adoption leave, sick leave, assisting with a national or international humanitarian or environmental crisis or taking part in lawful industrial action.

If you are earning £73,900 per year or more then you do not need to have been employed for any specific period of time.

## Intra-Company Transfer Visa Certificate of Sponsorship (CoS) Requirement

In order to obtain an Intra-Company Transfer Visa you must have a valid Certificate of Sponsorship for the job you are planning to do. Your Certificate of Sponsorship will need to have been issued by an employer that is authorised by the Home Office to sponsor the job in question under the Intra-Company Transfer route.

Your sponsor must be listed as A-rated on the Home Office's register of licensed sponsors, unless you were last granted permission under the Intra-Company routes and are applying to continue working for the same sponsor as in your last permission.

Your Certificate of Sponsorship must have been issued not more than 3 months before the date of your Intra-Company Transfer application.

Your Certificate of Sponsorship must include certain mandatory information, including:

- Details of your name, job and salary;
- Confirmation that you have worked for your employer outside the UK for at least 12 months, unless you are a high earner; <https://www.google.co.uk/search?q=richmond+chambers+immigration+barristers>
- A start date which is no more than 3 months after the date of your Intra-Company Transfer Visa application;
- Confirmation that the Certificate of Sponsorship has not been used in a previous application which was either granted or refused and has not been withdrawn by the sponsor or cancelled by the Home Office.

## Genuine Job Requirement

In order to be granted an Intra-Company Transfer Visa, you will need to satisfy the Home Office that you are being sponsored to undertake a genuine job.

If there are reasonable grounds to believe that the job you are being sponsored to do does not exist, is a sham or has been created mainly so that you can apply for an Intra-Company Transfer Visa then your application will be refused.

The Home Office will also want to be satisfied that you have not entered into an arrangement whereby you will fill a temporary or permanent position, or undertake contract work which involves undertaking an ongoing routine role or providing an ongoing routine service to a third party who is not your sponsor.

## Intra-Company Transfer Visa Job Skill Level Requirement

In order to qualify for an Intra-Company Transfer Visa, the job you are being sponsored to do must be an eligible job at or above a minimum skill level.

The Home Office has published a list of jobs that are eligible for an Intra-Company Transfer Visa (<https://www.gov.uk/government/publications/intra-company-visas-eligible-occupations>). The list includes the relevant occupation code, job type and related job titles.

You will usually meet the job skill level requirement if the job you are being sponsored for is on the list.

However, your sponsor must choose an appropriate occupation code. If the Home Office has reasonable grounds to believe that your sponsor has not chosen the most appropriate occupation code then your application for an Intra-Company Transfer Visa will be refused.

In assessing whether your sponsor has chosen the most appropriate occupation code, the Home Office will consider factors such as whether they have shown a genuine need for the job as described, whether you have the appropriate skills, qualifications and experience needed to do the job as described and the sponsor's history of compliance with the immigration system.

## Intra-Company Transfer Visa Salary Requirement



(<https://www.google.co.uk>

Employers seeking to transfer an employee under the Intra-Company Transfer route must pay their skilled workers a salary which equals or exceeds both a general salary threshold and the 'going rate' for the occupation (as set out in the relevant occupation code mentioned above), whichever is higher.

The general salary threshold under the Intra-Company Transfer route is £41,500 a year. Therefore, in most cases an applicant for an Intra-Company Transfer Visa must be paid a salary which equals or exceeds £41,500 a year and 100% of the going rate for the occupation, whichever is higher.

The assessment of salary is based on guaranteed basic gross pay (up to 48 hours per week) plus allowances which are guaranteed to be paid for the duration of the employment in the UK or are paid as a mobility premium or to cover the additional cost of living in the UK.

The Home Office has published a list of going rates for eligible Intra-Company Transfer occupation codes (<https://www.gov.uk/government/publications/intra-company-visas-going-rates-for-eligible-occupations/intra-company-visas-going-rates-for-eligible-occupation-codes>). The annual salaries stated are based on a 39-hour working week and must be pro-rated for other working patterns.

## Immigration Skills Charge Requirement

Your sponsor must also have paid in full any required Immigration Skills Charge (<https://immigrationbarrister.co.uk/immigration-skills-charge-a-guide-for-employers/>).

The Immigration Skills Charge is a charge for each foreign worker that a sponsoring employer seeks to employ. The Immigration Skills Charge must be paid each time a sponsoring employer assigns a Certificate of Sponsorship to a migrant.

## Intra-Company Transfer Visa Financial Requirement

Subject to the exemptions below, you will need to have cash funds of at least £1,270 available.

You will need to have held the money for at least 28 consecutive days ending not more than 31 days before the date of your Intra-Company Transfer Visa application.

You will be exempt from the financial requirement if your sponsor is willing to meet your maintenance costs up to the end of the first month of your employment, to an amount of at least £1,270, if necessary. Your sponsor will need to confirm this on your Certificate of Sponsorship.

If you are applying for permission to stay and have been in the UK with permission for 12 months or more at the date of application, you will meet the financial requirement and will not need to show funds. <https://www.google.co.uk/search?q=richmond+chambers+in>

## Switching into the Intra-Company Transfer Route

If you currently have leave to remain in another immigration category, you may extend your stay by switching into the Intra-Company Transfer route unless you have, or were last granted, permission as a Visitor, Short-term student, Parent of a Child Student, Seasonal Worker, Domestic Worker in a Private Household or outside the Immigration Rules.

## Duration of an Intra-Company Transfer Visa

If your application for an Intra-Company Transfer Visa is approved, you will be granted entry clearance or permission to stay for either the time given on your Certificate of Sponsorship plus 14 days, a period of 5 years, or the length of time that will take you to the maximum time period allowed in the category (see below), whichever is shorter.

## Maximum Time in the Intra-Company Transfer Route

If your application for an Intra-Company Transfer Visa is successful you will be able to extend your stay in the UK up to a maximum period of:

- 5 years in any 6 year period if you are paid less than £73,900 per year; or
- 9 years in any 10 year period if you are paid £73,900 or more per year.

Under a previous version of the route, there was a cooling-off requirement which prevented a person re-entering the UK on the Intra-Company Transfer route for 12 months after departing. This cooling-off provision no longer applies.

## Conditions of Stay on an Intra-Company Transfer Visa

Intra-Company Transfer Visa holders are permitted to work for their sponsor in the job described on their Certificate of Sponsorship. They may also do a second job up to 20 hours per week, provided the same is either in the same profession and at the same level as the main job or on the Skilled Worker shortage occupation list. They may also undertake a course of study. Access to public funds is not permitted.

## Settlement on the Intra-Company Transfer Route

The Intra-Company Transfer Visa does not lead to settlement in the UK. However, you may be able to switch into another immigration route which does lead to settlement.

You may also be eligible to extend your stay until you qualify for settlement on the basis of **Long Residence** (<https://immigrationbarrister.co.uk/personal-immigration/settlement-in-the-uk/long-residence/>). <https://www.google.co.uk/search?q=richmond+chambers+in>

## Dependants

Intra-Company Transfer Visa holders can be joined or accompanied by a dependent partner over the age of 18 and/or dependent children under the age of 18.

## How Our Immigration Barristers Can Help

Our team of business immigration barristers has experience in assisting employers and skilled workers across a variety of industries in companies of all sizes. Our barristers can help you with planning to ensure that you meet your start date and ensure that your career progression will fit your immigration goals.

We pride ourselves on being approachable and proactive in understanding and meeting our clients' needs. We are a highly driven team, dedicated to providing clear and reliable immigration advice to employees of multinational employers as part of a professional and friendly service.

## WE CAN ALSO ASSIST WITH

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**Applications for extension of stay as an Intra-Company Transfer migrant**




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**Applications for settlement as an Intra-Company Transfer migrant**




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**Fresh applications, Administrative reviews and Judicial reviews for ICT migrants**




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**Applications for Skilled Worker Visas**




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**Obtaining a Sponsor Licence**




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**Updating corporate structures and governance with the Home Office**




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**Completing a Certificate of Sponsorship**




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**Compliance and record-keeping**



## Remedying problems with your Sponsor

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### Sponsor Licence downgrades, suspensions and revocations

## WHAT CAN WE HELP YOU WITH?

To discuss your Intra-Company Transfer visa application with one of our immigration barristers, contact our business immigration team on 0203 617 9173 or complete our enquiry form.

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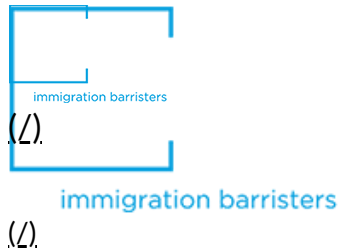
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